



File No.: EXP202210212

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) on 16/09/2022 filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against B.B.B., with NIF ***NIF.1 (hereinafter, the respondent). The complaint is based on the existence of indications that the surveillance camera installed by the respondent at the property located at ***ADDRESS.1 violates personal data protection regulations.

The complainant has stated that "in the neighboring house" "a surveillance camera has been installed that may be pointing at her house due to its position." She and her family, which includes two minor children, feel intimidated and do not carry out their daily lives due to the pressure caused by feeling watched. She adds that "she does not know if the camera is recording or receiving images instantaneously or if it is a camera without any type of image reception," but that at no time has she given authorization to the respondent to install cameras that focus on her and her family, whether or not they are recording.

She provides the following documents:

- Copy of the complaint filed on 07/09/2022 with the Civil Guard. In it, she states that on that day she noticed that the neighbor of the house adjacent to hers "has installed a surveillance camera right at the eaves of the entrance of that house and that she presumes it might be recording images of her house." She states that previously the camera was installed at the access door and that it has been moved to the indicated location. The camera is not wired, so it may be wireless.

- Photographic report: Three photographs that show where the camera is located in the respondent's house and its position relative to that of the complainant.

The camera, of "Dome" format or similar - with a viewing and recording angle of 360 degrees - is mounted on the ceiling of the porch of the respondent's house right where her house ends and the complainant's begins, next to the dividing wall that separates them. The dividing wall is of medium height, slightly taller than the garden fence, so the installed camera can record the garden or patio of the complainant's house. In the case of the respondent's house, adjacent to the garden, there is a porch at the right end where the dividing wall is located.

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On 06/03/2023, a new document was received from the complainant informing that the camera remains installed; that she does not know if it is recording or not and that the facts reported to the Agency on 16/09/2022 persist.

She provides four photographs: It is observed that the location of the camera remains the same and that the complainant has installed a panel over the vertical of the dividing wall that separates the houses with the aim of increasing its height, which would reduce the camera's view of her house. Despite this, due to its position and the technical characteristics it seems to have, the camera could capture images of the exterior patio of the complainant's house.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was not

collected by the recipient:

The forwarding was made by postal mail on 04/10/2022. It was "Returned to Origin due to Excess (Not collected at office)" on 14/10/2022. The two delivery attempts (dated 6 and 7/10/2022) had the same result: "03 Absent." A notice was left in the mailbox. This is recorded in the Certificate of Impossibility of Delivery issued by Correos y Telégrafos, S.A.E. (hereinafter, Correos).

The shipment was reiterated on 20/10/2022. In the certificate issued by Correos, it states "It has been returned to Origin due to 02 Incorrect address on 26/10/2022." According to this certificate, only a first delivery attempt was made on 24/10/2022, with the result "03. Absent."

A second reiteration was made by postal mail dated 02/11/2022, which was "Returned to Origin due to Excess (Not collected at office)" on 14/11/2020. Two delivery attempts were made - on 4 and 7/11/2022 - with the result "03 Absent." A notice was left in the mailbox.

No response has been received to this forwarding document.

THIRD: On 29/11/2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing, which was notified and acknowledged by the complainant on 14/12/2022.

FOURTH: On 01/06/2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 5.1.c) of the GDPR, classified in its Article 83.5.a).

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The agreement to open the procedure is notified to the respondent via postal mail with an absent result. In this regard, the document Certification of Delivery Impossibility issued by Correos on 07/07/2023 is included in the file, certifying that the shipment addressed to the respondent at the address "****ADDRESS.1" was returned to sender due to excess on 05/05/2023. This information is provided: The first delivery attempt was made on 26/06/2023 at 12:28, resulting in "03 Absent." The second attempt was on 28/06/2023 at 15:58, also resulting in "03 Absent." "A notice was left in the mailbox."

In accordance with the provisions of Article 44.1 of the LPACAP, the notification was carried out by means of an announcement published in the Official State Gazette (BOE), Notification Supplement, on 12/07/2023.

FIFTH: The initiation agreement was notified in accordance with the rules established in the LPACAP, and after the period granted for the submission of allegations has elapsed, it has been confirmed that no allegations have been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the agreement to open the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution.

The initiation agreement of the procedure determined the facts constituting the infringement of the GDPR attributed to the respondent and the sanction that could be imposed. Therefore, considering that the respondent has not submitted allegations to the initiation agreement of the file, and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned opening agreement is considered in this case a proposal for resolution.

In light of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts proven in the present procedure,

PROVEN FACTS

FIRST: The complainant submitted a complaint on 16/09/2022 stating that in the neighboring house (house on ***ADDRESS.1) a surveillance camera has been installed that may be focusing on her house due to its position, and that she and her family, including two minor children, feel intimidated and do not carry out their daily life due to the pressure caused by feeling watched.

SECOND: The facts presented by the complainant were reported by her to the Civil Guard on

07/09/2022. She provides a copy of the complaint.

THIRD: Seven photographs submitted with the complaint are included in the file, clearly evidencing these points:

- Both houses are adjacent, and the party wall is of half height.
- In the complainant's property, the party wall is followed by the garden or patio. In the respondent's property, there is a porch adjacent to that wall.
- A video camera is installed on the roof of the porch, at the end that coincides with the vertical of the party wall, and at the part of it furthest from the house.
- The camera, spherical in shape, has the characteristics of the "Dome" model, with the capability of viewing and recording in 360°.
- The location of the camera and the characteristics of the construction perfectly allow for the recording of the garden/patio of the complainant's property.

FOURTH: Four photographs submitted by the respondent on 06/03/2023 are included in the file, evidencing these points:

- The location of the camera remains the same as reflected in the photographs submitted with the complaint.
- A panel appears to be installed over the vertical of the party wall separating the houses, on the side of the complainant's property, which attempts to reduce the camera's field of vision over her house. Nevertheless, due to the position and characteristics of the camera, it could still capture images of the complainant's exterior garden/patio.

FIFTH: The respondent has not submitted allegations to the initiation agreement.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Image is a personal data

Article 4.1 of the GDPR defines personal data as "any information relating to an identified or identifiable natural person ('the data subject') [...]".

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Therefore, the image of a natural person is a piece of personal data, for example, images generated by a system of cameras or video cameras, and its processing is subject to data protection regulations. It is worth mentioning the SAN of 21/03/2023, Rec. 330/2021, which states that the image of a person is a piece of personal data and indicates that it has "[...] declared on multiple occasions (SSAN of 19/12/2018, Rec. 286/2017 and of 27/12/2019, Rec. 786/2018) that the image of a person constitutes personal data in the sense of [...] current article 4.1 of the General Data Protection Regulation (GDPR) insofar as it allows for the identification of the affected person, as indicated by the ruling of the Court of Justice of the European Union of December 11, 2014 (case C-212/13)."

III

Principles of data protection and processing of data for video surveillance purposes

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data can be considered lawful.

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD provides that natural or legal persons, public or private, may carry out the processing of images through systems of cameras or video cameras with the aim of preserving the safety of persons and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of

the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be “adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed.”

This means that, in a specific processing operation, only the relevant personal data may be processed; that is, data that is pertinent and strictly necessary to fulfill the purpose for which it is processed. The processing must be adjusted and proportionate to the purpose it is directed towards. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of that data.

In accordance with the above, the processing of excessive data must be restricted or their deletion must be carried out.

The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places can only be carried out by the Security Forces and Corps with prior governmental authorization.

In some cases, for the protection of private spaces where cameras have been installed on facades or indoors, it may be necessary, to ensure the purpose of security, to record a portion of the public road.

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That is to say, cameras and video cameras installed for security purposes may not capture images of public roads unless it is essential for that purpose or it is impossible to avoid it due to their location.

And, in such an extraordinary case, the cameras may only capture the minimum portion necessary to preserve the safety of persons and property, as well as the facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, they may not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

Installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby circulating in the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the aim of intimidating them or affecting their private sphere without a justified cause is not permitted.

Images in spaces owned by third parties may not be captured or recorded without the consent of their owners, or, where applicable, of the persons present in those spaces.

Furthermore, it is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

IV

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system with the aim of preserving the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means (Recital 39 of the GDPR).

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR and Article 22 of the LOPDGDD must be fulfilled.

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In this regard, Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance); to the identity of the data controller; to the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR; and to the indication of where to obtain more information about the processing of personal data.

This information must be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information in the second layer must be available in a location easily accessible to the affected individual, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or at a web address, and must refer to the remaining elements of Article 13 of the GDPR.

4.- The processing of images through the installation of camera systems or video cameras must be lawful and comply with the principles of proportionality and data minimization as previously indicated.

5.- Images may be retained for a maximum period of one month, unless they must be retained to prove the commission of acts that threaten the integrity of individuals, property, or facilities. In such cases, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

6.- The data controller must maintain a record of activities of the processing operations carried out under its responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The data controller must conduct a risk analysis or, where applicable, a data protection impact assessment, to identify the risks arising from the implementation of the video surveillance system, assess them, and, if necessary, adopt appropriate security measures.

8.- When a security breach occurs that affects the processing of cameras for security purposes, provided there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours.

A security breach is understood as the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Data Protection Agency offers access through its website [<https://www.aepd.es>] to:

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- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and Resolutions" / "Regulations"),

- the Guide on the use of video cameras for security and other purposes,

- the Guide for compliance with the duty to inform (both available in the "Guides and Tools" section).

It is also of interest, in the case of carrying out low-risk data processing, the free tool Facilita (in the "Guides and Tools" section), which, through specific questions, allows assessing the situation of the data controller regarding the personal data processing it carries out and, if applicable, generating various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

V

Infringement of Article 5.1.c) of the GDPR

The respondent is attributed an infringement of the data minimization principle established in Article 5.1.c) of the GDPR, which states: "Personal data shall be: [...] adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

The respondent is considered the data controller, defined in Article 4.7 of the GDPR as "the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing."

The data minimization principle is mandatory for the data controller. Moreover, the data controller is obliged, under the proactive responsibility principle set out in Article 5.2 of the GDPR, to comply with the principles described in Article 5.1—of which the data minimization principle is now of interest—and to be in a position to demonstrate compliance.

Recital 39 of the GDPR states regarding data minimization that "Personal data should only be processed if the purpose of the processing cannot reasonably be fulfilled by other means."

In the present case, it has been established through the documentation in the file that:

- In the dwelling of the respondent, next to the intersection of this and the dwelling of the claimant, almost directly above the vertical of the dividing wall that separates them, a video surveillance camera is installed. The camera is located on the ceiling of a porch of the respondent's dwelling, at its right end, above the vertical of the dividing wall, at a medium height, which separates both dwellings.
- The external characteristics of the installed camera match those of the "Dome" model, with a viewing and recording angle of 360 degrees.

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It is evident, therefore, that the installed camera can capture images from inside the claimant's residence: from the patio or garden. Also, the respondent can place the camera in other locations within their residence and ensure the safety of their person, property, and facilities, without it being necessary, in any case, to keep it in its current location for such purposes.

Therefore, it is established that the respondent has not respected the necessary proportionality between the processing of data carried out through their video camera and the purposes for which such processing is authorized by the GDPR: the safety of persons, property, and facilities. This purpose is incompatible with the camera capturing images from inside a private home (Article 22.2 LOPDGDD), as is the case here with the claimant's patio or garden.

In light of the above, it is concluded that the processing carried out by the respondent through the surveillance system installed in their residence, at the documented location, violates the principle of data minimization established in Article 5.1.c) of the GDPR.

VI

Classification of the infringement of Article 5.1.c) of the GDPR

The infringement of Article 5.1.c) of the GDPR, for which the respondent is held responsible, is classified in Article 83.5 of the GDPR, which states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9." The LOPDGDD, solely for the purpose of determining the statute of limitations for the infringement, classifies the violation of Article 5.1.c) of the GDPR as very serious and sets a statute of limitations of three years for it. Article 72.1 of the LOPDGDD states:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following violations are considered very serious and shall be subject to a three-year statute of limitations for substantial violations of the articles mentioned therein, particularly the following:

a) The processing of personal data that violates the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

VII

Administrative fine sanction

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The controllers of the processing are subject to the sanctioning regime established in the GDPR and in the LOPDGDD (Article 70 LOPDGDD).

Among the corrective measures that the Agency, as the supervisory authority, can adopt and which are detailed in Article 58.2 of the GDPR, is (paragraph i) the possibility of imposing an administrative fine in accordance with Article 83 of the GDPR.

Furthermore, Article 83.1 of the GDPR obliges the supervisory authorities to ensure that the administrative fines imposed for violations of the GDPR are, in each individual case, effective, proportionate, and dissuasive. Additionally, to determine their amount, the GDPR provides criteria or factors for graduation in Article 83.2 of the GDPR.

Article 83.5 of the GDPR provides for a fine of up to 20 million euros for the infringement of Article 5.1.c) of the GDPR, for which the respondent is held responsible.

In the particular case at hand, considering the provisions of Articles 83.1 and 83.2 of the GDPR, it is agreed to impose on the respondent an administrative fine of €300 (three hundred euros) for the infringement of Article 5.1.c) of the GDPR.

VIII

Corrective measures imposed on the respondent

Article 58.2 of the GDPR grants supervisory authorities the possibility to adopt various corrective measures, including, in paragraph d), "ordering the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified timeframe."

In this resolution, in light of the circumstances involved and applying Article 58.2.d) of the GDPR, the respondent is ordered to:

- Remove the camera or video camera system from the location where it is currently installed, as evidenced by the documentation in the file.
- Alternatively, to adopt appropriate technical measures (such as a privacy mask) that prevent the viewing of images from the claimant's residence.

The respondent must adopt the corrective measure ordered here and demonstrate compliance to this Agency within 10 business days from when this resolution becomes enforceable.

The respondent is warned that failure to comply with the requirements of this agency may be considered an administrative infringement in accordance with the provisions of the GDPR, classified in Articles 83.5 and 83.6, leading to the initiation of further administrative sanctioning procedures.

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Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, a fine of €300 (three hundred euros) for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5.a) of the GDPR.

SECOND: TO ORDER B.B.B., with NIF ***NIF.1, pursuant to Article 58.2.d) of the GDPR, to demonstrate within ten working days from the date this resolution becomes enforceable, the removal of the video camera from its current location or the adoption of technical measures, such as a privacy mask, that prove that its video camera system cannot capture images of the claimant's adjoining residence.

THIRD: TO NOTIFY this resolution to B.B.B., with NIF ***NIF.1.

FOURTH: This resolution will become enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed

without the interested party having exercised this right. The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing the amount, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receiving the notification and once the resolution becomes enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next working day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day thereafter.

In accordance with the provisions of Article 50 of the LOPDGGD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGGD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a reconsideration appeal before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that, in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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